

Remuneration and Allowances for Members of the Sarawak State Legislative Assembly (DUN)

The remuneration and allowances for Ahli Dewan Undangan Negeri (ADUN), or members of the Sarawak DUN, are primarily governed by the *Members of the Administration and Members of Dewan Undangan Negeri (Remuneration, Pensions and Gratuities) Ordinance, 2013* (Chapter 68). This Ordinance, effective from January 1, 2012, provides a framework for salaries, allowances, pensions, and related benefits. As of December 2025, the core structure remains unchanged since its enactment, with the last significant adjustment to base rates occurring in 2013. However, a subsidiary amendment was gazetted in February 2025 via the *Speaker, Deputy Speaker and Members of Dewan Undangan Negeri (Allowances and Benefits) (Amendment to Schedule) Order, 2025* (Swk. L.N. 41/2025), made under Section 5 of the Ordinance. This amendment adjusts schedules related to allowances and benefits, but full details are not publicly accessible via standard online sources, exemplifying ongoing transparency issues.

This writeup summarizes the key components of ADUN allowances based on the Ordinance, government announcements, and media reports. It highlights areas of clarity versus ambiguity, noting that while fixed remuneration is well-defined, many operational allowances lack statutory specificity and rely on administrative discretion.

Fixed Remuneration (Clearly Defined)

Under Section 3 of the Ordinance, ordinary ADUN receive a fixed monthly allowance of RM15,000. This is explicitly stated and serves as the base pay, accruing daily and payable at month-end (Section 7). In practice, this is often broken down as:

- Basic salary: RM11,130
- Service allowance: RM3,870

This breakdown is not statutory but appears in budget documents and reports for accounting purposes. Leadership roles receive higher fixed salaries (Section 4 and 6), e.g.:

- Speaker: RM30,000 (plus RM15,000 if also an ADUN)
- Deputy Speaker: RM21,000 (plus RM15,000)

These rates are transparent and charged to the State Consolidated Fund where applicable (Section 12).

Additional Allowances and Benefits (Partially Defined, with Ambiguities)

Section 5 authorizes "special performance payment or bonus and such other allowances and benefits" for ADUN, determined by Orders of the Yang di-Pertua Negeri and laid before the DUN. This section is the primary source of flexibility but also opacity, as it delegates details to subsidiary legislation without mandating public itemization or definitions in the main Ordinance. No comprehensive list or formulas are provided in Chapter 68 itself, leading to reliance on gazetted Orders, DUN hansard (which is time-limited online), and media.

Known allowances, based on 2024-2025 reports and practices, include:

Allowance Type	Amount (RM)	Details	Clarity/Ambiguities
Sitting Allowance	450 per day	Paid for attendance during DUN sessions (typically 8-15 days per session, twice yearly). Increased from RM50 in November 2024.	Clearly updated via public announcement; effective date and rate are defined. However, no statutory cap on session days or total annual payout in the Ordinance.
Constituency Allowance	6,000–15,000 monthly	For operational costs like office maintenance, community outreach, and constituency services. Varies by urban/rural/remote status (higher for vast interior areas).	Unclearly defined: No definition, criteria for variation, or audit requirements in Chapter 68. Administered via claims to the DUN Clerk; exact allocation formula (e.g., based on constituency size/population) is discretionary and not gazetted publicly. This leads to potential inequities and lack of transparency in expenditure.
Travel Allowance	Up to 2,000 monthly	Reimbursement for official travel within Sarawak, including fuel and logistics.	Unclearly defined: No specifics on eligible expenses, mileage rates, or verification processes in the Ordinance. Relies on internal guidelines, which are not readily available.

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Entertainment Allowance	1,500 monthly	For official functions, meetings, and hospitality.	Unclearly defined: Broad purpose without itemized caps or examples; prone to abuse without public reporting.
Medical Allowance	500 monthly	Reimbursement for health expenses; may include family coverage under broader benefits.	Moderately defined via Section 19 (First Schedule) for pensioners, but for active ADUN, it's an extension under Section 5 without detailed eligibility (e.g., what qualifies as "medical").
Housing Allowance	Up to 3,000 monthly	If not using government quarters; official residences provided for some.	Unclearly defined: No criteria for "official quarters" assignment or valuation if quarters are used instead of cash.
Performance Bonus/Special Payments	Variable (e.g., annual bonus tied to state revenue)	Discretionary payments under Section 5 and 6(3), such as one-off incentives.	Highly unclear: No formulas or triggers specified; determined by Majlis Mesyuarat Kerajaan Negeri "from time to time." The 2025 Amendment likely adjusts these, but without accessible details, the scope remains opaque.

Estimated total monthly take-home for ordinary ADUN: RM25,000–RM40,000 (after deductions like EPF/SOCSSO ~6-8%), varying by claims and constituency type. Leadership roles add RM10,000–RM20,000 more.

Areas Where Allowances Are Not Clearly Defined

The Ordinance prioritizes fixed pay and pensions (First Schedule) but treats allowances as secondary, leading to several ambiguities:

1. **Lack of Statutory Definitions:** Terms like "constituency allowance" or "travel allowance" are not mentioned or defined in Chapter 68. They emerge from administrative practices and Orders under Section 5, which can be amended without full DUN debate (e.g., the 2025 Order amends schedules but details are not

publicly detailed in gazettes). This creates uncertainty on purposes, limits, and accountability.

2. **Discretionary Variations:** Allowances like constituency vary widely (RM6,000–15,000) based on undefined factors (e.g., rural vs. urban). No transparent criteria or appeals process, potentially favoring certain ADUN.
3. **Opacity in Subsidiary Legislation:** Orders under Section 5 must be laid before DUN, but hansard access is limited (available online only for 1 month post-session). The 2025 Amendment (effective February 2025) likely refines benefits, but without full text, it's unclear if it introduces new allowances or adjusts rates (no media reports specify ADUN changes; 2025 increases focused on civil servants and leaders).
4. **No Public Reporting on Claims:** Individual ADUN claims (e.g., for travel or entertainment) are not disclosed, audited internally only. This fosters criticism from opposition and civil society on potential misuse, with no mandatory annual reports.
5. **Integration with Other Benefits:** Section 6(3) allows "special performance payments" for administration members (which may include ADUN in roles), but without benchmarks. Accident benefits (Second Schedule) are detailed for amounts but not integrated clearly with allowances.

Recent Developments (2024-2025)

- Sitting allowance hiked to RM450/day in November 2024, aligning Sarawak with federal rates.
- No confirmed 2025 changes specific to ADUN allowances; budget allocations (e.g., Supply Bill 2026) prioritize civil servants and community leaders.
- The 2025 Amendment Order suggests schedule tweaks, possibly for pensions or bonuses, but ambiguity persists due to limited access.

For official verification, consult Sarawak LawNet or DUN hansard. Reforms for transparency (e.g., open data portals) have been proposed but not implemented as of 2025.